

laws of this state, a court rule, or an order of court” may be struck out. (CCP §436.) A motion to strike may attack an entire pleading, and various sub parts of a pleading, such as a cause of action or a component paragraph, words, or phrases. (*Okorie v. Los Angeles Unified School Dist.* (2017) 14 Cal. Ap. 5th 574, 589.) In reviewing a matters subject to a motion, matters are deemed immaterial if they are not essential to the claim, are neither pertinent nor supported by an otherwise sufficient claim, or are a demand or judgment or a request for relief not supported by the allegations. (CCP§431.10 sub (b).) Here, the Plaintiffs are seeking pre judgment interest in their prayer for relief which is not statutorily permissible.

Proposed ruling: Grant the motion to strike prayer 6, page 6, line 14 stating “Pre-judgment interest and post-judgment interest as permitted by law.”

CU-26-00011 **Russell Enz v. Enz Vineyards, et al**

5-14-2026

On calendar for 1) Defendant/ Cross Complainant Robert Enz’s motion for preference (CCP§36)

Plaintiff: Effie Anastassiou (Russell Enz, Karen Sims)

Defendant: Arif Virji (Enz Vineyards)

Defendant: Joseph Victor Harrison, Michael Russell Wanser (Robert Enz)

Defendant: Jaimee Amone Modica (Michael Enz)

Cross Complaint:

XPlaintiff: Arif Virji (Enz Vineyards)

XDefendant: Effie Anastassiou (Russell Enz)

2-18-2026 FAC Complaint for 1) Breach of Employment Contract with Russell Enz; 2) Breach of Employment Contract with Karrie Sims (aka Karen Sims); 3) Breaches of Implied Covenant of Good Faith and Fair Dealing in Employment Contracts; 4) Fraudulent Inducement; 5) Conversion; 6) Failure to Timely Make 401K Contribution; 7) Promissory Estoppel with Respect to Silverado; 8) Wrongful Eviction; 9) Breach of Oral Equipment Lease; 10) Intentional Interference with Business Relations; 11) Injunctive Relief re Personal Property; 12) Declaratory Relief re Residential Lease; 13) Declaratory and Injunctive Relief re Share Reversion Demand and Exercise of Shareholder Rights

2-19-2026 X Complaint: Defendant’s Cross Complaint for 1) Breach of Fiduciary Duties (Violation of Corp. Code §309); 2) Civil Recovery under Penal Code §496(c) (By Enz Vineyards, Robert Enz as Shareholder, Michael Enz as Conservator for Susan Enz as

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Shareholder vs Russell Enz, Karrie Sims); 3) Civil Recovery under Penal Code 496 (c) (By Michael Enz as Conservator for Susan Enz in her individual capacity v. Russell Enz) ; 4) Fraudulent Concealment/Nondisclosure; 5) Conversion (By Enz Vineyards, Robert Enz as Shareholder, Michael Enz as Conservator for Susan Enz as Shareholder vs Russell Enz, Karrie Sims) ; 6) Conversion (By Michael Enz as Conservator for Susan Enz in her individual capacity v. Russell Enz); 7) Specific Performance of Shareholders' Agreement; 8) Financial Elder Abuse (W&I §15610.30)

Argument:

6-5-26 Cross Complainant/ Defendant Robert Enz moves for preference pursuant to CCP§36. He is 90 years of age, and has statistically speaking, average life expectancy for a man in the United States, with a less than 20% statistical probability of surviving to his next birthday. His health is compromised (congestive heart failure, hypertension, among other past and current medical issues.) (Enz dec ¶¶3-6) Whether he survives the year or not, his health likely will continue to deteriorate. He has a substantial interest in this action, and is a critical witness, hence warranting statutory preference. The claims in this suit are largely based on allegations of oral promises made by Robert and Susan Enz. Susan Enz is mentally incapacitated and conserved (Enz dec ¶7), rendering Robert's participation crucial. (Enz dec ¶8-11.) Mr. Enz meets the statutory requirements. He is over the age of 70 and in declining health, and his interests in the pending litigation are substantial.

Enz Vineyards does not oppose the motion.

7-31-2026 Russel Enz and Karrie Sims oppose granting preference. Robert Enz cannot satisfy the statutory requirement that his health is such that preference is necessary to prevent prejudice against his interest. He must be both over the age of 70 and have a showing that his health is such that preference is mandatory. No medical records have been produced; there is no physician's declaration or diagnosis or prognosis showing that his medical condition is deteriorating such that preference is needed. He is functioning normally, socializing, walking without assistance, driving, flying in his personal airplane, he was able to testify at deposition on 7-22-2026, and he is presently acting as CEO of Enz Vineyards. Nor is there a showing that granting the preference would be in the interests of justice. Robert Enz' declarations is insufficient on its own. Despite the lenient requirements of section 36, his counsel's declaration is only generalities and provides only statistical mortality rates. Mr. Enz's health conditions are either in the past or medically controlled and do not warrant preference.

Reply: The opposition argues that no preference is needed because Mr. Enz is currently able to engage in business and life activities and has thus far been able to participate in this litigation. This misses the point. He does not need to be incapacitated to be eligible for section 36 relief.

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The statute is intended to prevent prejudice to a stricken litigant's interests (Fox v. Sup. Ct, supra, at 536.). He needn't be at death's door. At 90 years old with ongoing heart conditions, his age and health clearly mandate preference to avoid prejudicing his interests. Plaintiffs do not dispute any of Mr. Enz's declaration regarding his health, nor do they cite law to support the contention that Mr. Enz must provide medical documentation to support a claim for preference under section 36 subdivision (a). There is no such requirement. A section 36 (a) motion can be supported by nothing more than attorney's declaration made on information and belief. (CCP§36.5.)

Legal Standards and analysis: A party to a civil action over the age of 70 years may petition the court for preference at any time during the pendency of the action. (CCP§36 sub (a).) The court shall grant the application for preference if the court determines that the party 1) has a substantial interest in the action as a whole; and 2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the action. (Ibid.) Preference may also be granted in the interests of justice (CCP§36 sub (e).) The statute was drafted to ensure that elderly people would not be denied their rights in civil litigation as a result of long delays in having the case set for trial. (Greenblatt v. Kaplan's Restaurant (1985) 171 Cal. App. 3rd 991, 994-995.) The legislative history notes that it provides for an early trial date for those individuals who "because of their advanced age or serious medical problems might die or become incapacitated before their cases come to trial." (Ibid.) The statute serves to safeguard this interest for those whose age or precarious health risks that they may perish or be incapacitated such that their cases could not be effectively tried and their chance to recover a just measure of damages or receive appropriate redress would be lost. (Kline v. Sup. Ct. (1991) 227 Cal. App. 3rd 512, 515.) The statutory requirements may be met by an attorney's declaration on information and belief. (CCP§36.5).

Once the statutory requisites are met, the granting of preference under section 36 is mandatory. (Miller v. Sup. Ct. (1990) 221 Cal. App. 3rd 1200, 1206.) The court may not consider countervailing interests, such as inconvenience in determining the motion. (Ibid.) Nor is it required that an eligible litigant wait to be at the brink of death to be entitled to relief; the statute requires granting calendar preference to prevent prejudice to a stricken party's interests. (Fox v. Sup. Ct. (2018) 21 Cal. App. 5th 529, 536.) There is no requirement to weigh the interests of the parties.

Here the Cross Complainant has met these statutory requirements. Contrary to the position taking in the opposition, there is no requirement that Mr. Enz produce his private medical records. Plaintiff can cite no such requirement because none exists. Even the declaration on information and belief of Mr. Robert Enz' attorney would be sufficient under the law. However, he has done more and provided his own declaration detailing his personal health concerns and provided the

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actuarial tables available through CACI from page 1023-1024, which provides life expectancies for men of the Cross Complainant's age. It is not required that Mr. Enz be knocking on death's door, or that he be completely incapacitated to be eligible for relief under the statute. The statute exists to prevent prejudice given the risk of his becoming incapacitated or dying so as to lose his right to redress and to be heard by the court.

Proposed ruling: The motion for preference pursuant to CCP §36 is granted.

END OF TENTATIVE DECISIONS

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